DV-300 Request to Change or End Restraining Order

Clerk stamps date here when form is filed.

Instructions

Use this form to ask a judge to change or end a domestic violence restraining order (form DV-130) that is still in effect (not expired). You can also use this form to ask to change or end a juvenile restraining order (form JV-255) based on domestic violence, if the juvenile case has been closed. For more information on this process, read form DV-300-INFO, *How Do I Ask to Change or End a Domestic Violence Restraining Order?* Do not use this form to ask to change or end orders made in a separate family law case (a case with a different case number than your restraining order). For more information, read form FL-300-INFO, *Information Sheet for Request for Order*.

Fill in court name and street address:

Superior Court of California, County of

Fill in case number:

Case Number:

1 Your Information

a. Name: _____

b. Who are you in this case? *(Check one):*

☐ Protected person ☐ Restrained person

c. Is this your first request to change or end the restraining order?

☐ Yes ☐ No *(How many times have you made a request?):* _____

d. ! Address where you can receive court papers

(This address will be used by the court and the other party to send you official court dates, orders, and papers. You may use another address like a post office box, a Safe at Home address, or another person's address, if you have their permission and can get your mail regularly. If you have a lawyer, give their information.)

Address: _____

City: _____ State: _____ Zip: _____

e. ! Your contact information *(optional)*

(The court could use this information to contact you. If you don't want the other party to have this information, leave it blank or provide a safe phone number or email address. If you have a lawyer, give their information.)

Telephone: _____ Email Address: _____ Fax: _____

f. Your lawyer's information *(if you have one)*

Name: _____ State Bar No.: _____

Firm Name: _____

2 Information About Your Case

a. The other party in this case is *(full name):* _____

b. The current order expires on *(date):* _____

(Attach a copy of the current restraining order (form DV-130, DV-330, DV-730, or JV-255).)

This is not a Court Order.

3 Request

a. ☐ I ask the judge to end all the orders granted in the restraining order (form DV-130, DV-330, or JV-255).

b. ☐ I ask the judge to change or end some of the orders in the restraining order (form DV-130, DV-330, or JV-255).

(If you checked b, complete section below)

(1) **Describe the changes that you want the judge to make to the restraining order**

(For example, you can identify the order by name (stay-away order) and say "I ask for the stay-away order to be changed to ...")

(2) **Do you want the judge to change orders for child custody or visitation?**

☐ Does not apply to my case. I do not have a child with the other party in this case.

☐ No.

☐ Yes. (If yes, you must complete form DV-305 and attach it to this form.)

This is not a Court Order.

3 b. (3) **Do you want to add people to, or remove people from, the restraining order?**
(listed on form DV-130, item 3, or JV-255, item 3)

☐ No
☐ Yes *(complete section below)*

Full name	Age	Relationship to you	Lives with you?	Request to:
_____	_____	_____	☐ Yes ☐ No	☐ Add ☐ Remove
_____	_____	_____	☐ Yes ☐ No	☐ Add ☐ Remove
_____	_____	_____	☐ Yes ☐ No	☐ Add ☐ Remove
_____	_____	_____	☐ Yes ☐ No	☐ Add ☐ Remove

☐ Check this box if you need to list more people. Use a separate piece of paper and write "DV-300, Other Protected people" at the top. Turn it in with this form.

Explain why the people listed above should be added or removed.

_____
_____
_____
_____
_____

(4) **Do you want the judge to change the restraining order immediately?**

(Usually, a judge makes a decision at a court hearing, when both sides have a chance to speak and give evidence. In some situations, a judge may make orders immediately (1) if you are the protected party and temporary orders are needed for more protection, (2) to prevent immediate harm to a child in this case, or (3) if there is an immediate risk that a child in this case will be taken out of California. If you are the restrained party, the judge cannot end or change the restraining order before the protected party has been properly served with this request and there has been a court hearing on your request.)

☐ No.
☐ Yes. *(If yes, complete section below.)*

Describe the orders you are asking the judge to make immediately.

_____
_____
_____
_____

Explain why you need orders immediately.

_____
_____
_____
_____
_____

This is not a Court Order.

4 Reason for Request

In this section, explain why you are asking the judge to change or end the orders.

☐ *Check here if there is not enough space for your answer. Attach a sheet of paper and write "Attachment 4, Reasons for Request" for a title.*

5 ☐ Extend My Deadline to Give Notice to the Other Party

(Usually, the judge will give you about three weeks to serve the other party with your request. If you need more time to serve the other party, the judge may be able to give you more time.)

I ask the judge to give me more time to serve the other party because *(explain why you need more time):*

6 ☐ Lawyer's Fees and Costs

I ask that the other party pay for some or all of my lawyer's fees and costs.

7 Additional Pages

a. How many additional pages are you attaching to this five-page form? _____

b. Which forms are you attaching to this order? *(Check at least one):*

☐ DV-130 ☐ DV-330 ☐ DV-730 ☐ JV-255 ☐ Other: _____

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8 Your Signature

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

_____ ▶ _____

Type or print your name *Sign your name*

9 Your Lawyer's Signature *(if you have one)*

Date: _____

_____ ▶ _____

Lawyer's name *Lawyer's signature*

Your Next Steps

- After you complete this form, complete items 1 and 2 of form DV-310, *Notice of Court Hearing and Temporary Order to Change or End Restraining Order*.
- File this form and form DV-310 with the court clerk. **You must do this before your restraining order expires**.
- Once you get your forms back from the court, follow the judge's orders on how to serve the other side (look at form DV-310, item 5). Have an adult (not you or anyone protected by the restraining order) serve the other side with a copy of your forms. You can also ask the sheriff to personally serve the papers, and they will do this for free. See form SER-001, *Request for Sheriff to Serve Court Papers*. Learn more about service at selfhelp.courts.ca.gov/DV-restraining-order/change-end/serve-request.
- After the other side has been served, have the person who served your papers complete a form and file the completed form with the court:
  - If the papers were personally served, have your server complete form DV-200, *Proof of Personal Service.*
  - If the papers were served by mail, have your server complete form DV-250, *Proof of Service by Mail.*
- If you are asking to change child support or spousal support, you must also complete form FL-150, *Income and Expense Declaration*. If you are only asking for child support, you may be eligible to fill out a simpler form, FL-155, *Financial Statement (Simplified)*. Read form DV-570 to see if you are eligible. Before your court date, turn in your completed form to the court and serve a copy on the other party.

This is not a Court Order.

For your protection and privacy, please press the Clear button after you have printed the form.

Print Save Clear